

Line 6

Case Name: *Alma Lorena Hernandez v. The City of San Jose, et al.*

Case No.: 24CV435404

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant and Cross-Complainant Oak Grove School District (“District” or “Cross-Complainant”) moves under Code of Civil Procedure Sections 473 and 576 for leave to file a First Amended Cross-Complaint against Sugumura Finney Architects, Inc. on the grounds that doing so is in the interests of justice. Notice of Motion (the “Motion”) at 2:4-13 (filed: Dec. 18, 2025).

The Motion came on for hearing on August 5, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

As the strong policy of California law is to liberally permit amendment of pleadings so that disputes will be efficiently decided on their merits, when resolving a motion to amend a pleading it is the practice of this Court to liberally exercise its discretion to permit amendment. *Nestle v. Santa Monica* (1972) 6 Cal. 3d 920, 939; *Mable v. Hyatt* (1998) 81 Cal. App. 4th 581, 596. Indeed, unless a party opposing a motion to amend a pleading demonstrates that the amendment would cause them undue prejudice, “it is not only error but an abuse of discretion” for a trial court to refuse permission to amend. *Morgan v. Sup. Ct. (Morgan)* (1959) 172 Cal. App. 2d 527, 530.

Here, no party opposed the Motion at all, let alone demonstrated that any prejudice would be wrought by this amendment. The Court views their failure to oppose this Motion as all parties conceding this Motion. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).

Accordingly, Cross-Complainant’s Motion is **GRANTED**. Specifically, Cross-Complainant Oak Grove School District is **ORDERED** to file its First Amended Cross-Complaint within 15 days of today. All other parties in this action may answer or otherwise respond to this First Amended Cross-Complaint in any manner allowed, and in the time allowed, by the Code of Civil Procedure.

SO ORDERED.

Date: August 5, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 7

Case Name: *Santos Medina v. SF Green Construction Inc., et al.*

Case No.: 24CV453662

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Santos Medina moves under Code of Civil Procedure Section 473(a)(1) for leave to file a First Amended Complaint (“FAC”) on the ground that doing so is in furtherance of justice. Notice of Motion (the “Motion”) at 1:23-27 (filed: Dec. 11, 2025).

The Motion came on for hearing on August 5, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

As the strong policy of California law is to liberally permit amendment of pleadings so that disputes will be efficiently decided on their merits, when resolving a motion to amend a pleading it is the practice of this Court to liberally exercise its discretion to permit amendment. *Nestle v. Santa Monica* (1972) 6 Cal. 3d 920, 939; *Mable v. Hyatt* (1998) 81 Cal. App. 4th 581, 596. Indeed, unless a party opposing a motion to amend a pleading demonstrates that the amendment would cause them undue prejudice, “it is not only error but an abuse of discretion” for a trial court to refuse permission to amend. *Morgan v. Sup. Ct.* (Morgan) (1959) 172 Cal. App. 2d 527, 530.

Here, no party opposed the Motion at all, let alone demonstrated that any prejudice would be wrought by this amendment. The Court views their failure to oppose this Motion as Defendants conceding this Motion. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).

Accordingly, Plaintiff’s Motion is **GRANTED**. Specifically, Plaintiff Santos Medina is **ORDERED** to file his First Amended Complaint within 15 days of today. All other parties in this action may answer or otherwise respond to Plaintiff’s First Amended Complaint in any manner allowed, and in the time allowed, by the Code of Civil Procedure.

SO ORDERED.